

TENTATIVE RULINGS
LAW AND MOTION CALENDAR

Judge Thomas J. Lo

Department C44

Hearing Date and Time: June 11, 2026 @ 1:30 PM

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5244. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.).

Appearances: Department C44 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C44 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5244 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1	2316 PCDEV LLC vs. Naikani I SPV, LLC 2025-01533446	Motion to Expunge Lis Pendens Case Management Conference <i>Both matters continued to 7/23/26. See minute order dated 6/1/26.</i>
2	Arch Insurance Company vs. Star Hardware, Inc. 2024-01437363	Motion to Appear Pro Hac Vice <i>Vacated. See minute order dated 6/8/26.</i>
3	Bernal vs. Yen- Douangmala 2025-01456958	Motion to Be Relieved as Counsel of Record <i>Vacated. See minute order dated 6/8/26.</i>
4	Fragoso vs. Action Bag & Cover, Inc. 2025-01516283	Motion to Strike Portions of Complaint Defendant Action Bag & Cover, Inc.’s motion to strike the punitive damages allegations in plaintiff Silvia Hernandez Fragoso’s Complaint is DENIED. (Code Civ. Proc., §§ 435, 436 [authorizing motion]. The Complaint alleges sufficient specific facts to support punitive damages and employer liability. (Civ. Code, § 3294 [authorizing punitive damages]; Complaint, ¶¶ 14-15 [alleging “management refused to recognize [plaintiff’s injuries and dismissed her need for accommodation, calling her a ‘liar’ and ‘lazy,’” and essentially firing her on the spot for requesting accommodations], 16 [alleging “Supervisor Pat ... frequently made derogatory comments regarding Plaintiff’s race and national origin, stating that Hispanics and Mexicans were lazy and complained too much”]; <i>Lackner v. North</i> (2006) 135 Cal.App.4th 1188, 1210 [“‘despicable’ connotes conduct that is ‘so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people;” citations omitted]; see also <i>McGee v. Tucoemas Federal Credit Union</i> (2007) 153 Cal.App.4th 1351, 1362 [upholding punitive damages award based on employer’s “reprehensible” conduct of “engag[ing] in a pattern of behavior aimed at humiliating” plaintiff].) Moving defendant shall file an Answer to the Complaint within 15 days. Plaintiff shall give notice.

5	Hannegan vs. Hyundai Motor America 2024-01416484	1. Motion to Compel Arbitration 2. Case Management Conference <i>Motion is vacated. CMC continued to 11/13/26. See minute order dated 6/8/26.</i>
6	Manalese vs. Las Flores Internet, LLC 2023-01363921	Motion for Summary Judgment and/or Adjudication Defendant Las Flores Internet, LLC dba Strikeworks Solutions' motion for summary adjudication as to the claims of plaintiff Karlina Manalese is denied in its entirety. Defendant seeks summary adjudication as to the first, third, fifth, sixth, ninth, tenth, eleventh, twelfth, thirteenth, fourteenth and fifteenth causes of action to the Second Amended Complaint (SAC). It should be noted that Strikeworks' Separate Statement of Undisputed Material Facts is not in compliance with CRC Rule 3.1350. California Rules of Court, rule 3.1350(d) requires that the separate statement "separately identify each cause of action, claim, issue of duty, or affirmative defense, and each supporting material fact claimed to be without dispute with respect to the cause of action, claim, issue of duty, or affirmative defense." When seeking summary adjudication, "the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts." (CRC, rule 3.1350.) As Strikeworks lumped all of the facts together, indicating that each fact supports each item of requested adjudication, if there is a triable issue as to any fact, the motion fails in its entirety. Nevertheless the court addresses the motion on the merits. When a defendant seeks summary adjudication, it bears the burden of proof by a preponderance of the evidence to establish that a cause of action has no merit, that plaintiff cannot prove an element or some elements of a cause of action, or that a complete defense is established as a matter of law entitling it to judgment. (Code of Civ. Proc., § 437c, subd. (p)(2); <i>Hunter v. Pacific Mechanical Corp.</i> (1995) 37 Cal.App.4th 1282, 1287.) Strikeworks has failed to meet its initial burden with regard to causes of action ten through fifteen. Plaintiff's causes of action ten through fifteen are based on Strikeworks failure to pay Plaintiff commission owed. Strikeworks contends these causes of action fail as it is undisputed Manalese did not earn the commission she contends was unpaid, therefore there was no breach. Strikeworks contends that although

	Plaintiff had some early communications with MOMS of Orange County, she did not earn commission because she was not the original source of the client-contact and did not close the deal. SUF 44. In opposition, Manalese argues she originated and developed opportunities involving MOMS Orange County and Illumination Foundation during her employment. (PSSUF Nos. 20, 42 45) Whether Plaintiff sufficiently originated those accounts to entitle her to commission compensation presents a classic factual dispute inappropriate for summary adjudication. Defendants seek to benefit from the absence of documentation that they were legally required to provide. California law does not permit an employer to avoid commission liability through ambiguity created by its own failure to comply with Labor Code section 2751. There are triable issues of fact as to the first, third, fifth, sixth and ninth causes of action. Specifically, there are triable issues of fact as to Strikeworks' argument it could not have discriminated against Manalese because it had no knowledge of Manalese's claimed disabilities. See UMFs 38, 39 and Manalese's AMFs # 7, 8, 9, 10, 20, 21. In <i>Soria v. Univision Radio Los Angeles, Inc.</i> (2016) 5 Cal.App.5th 570, the court found a triable issue existed where the employee testified she told her supervisor she had a tumor and needed surgery, even though the supervisor denied these conversations occurred. This disputed factual issue precluded summary adjudication based on the employer's purported lack of knowledge. No authority requires that medical records be provided to the employer or that human resources be notified; all that is required is evidence that decision-makers knew of the disability. (<i>Id.</i>). Plaintiffs may also rely on circumstantial evidence to demonstrate employer knowledge. In <i>Sandell v. Taylor-Listug, Inc.</i>, (2010) 188 Cal.App.4th 297, the court found that even without direct evidence that decision-makers were aware of the employee's speech impairment following a stroke, "one could reasonably infer from this evidence that those who worked with [the employee], including [management], were aware that [the employee's] ability to speak continued to be negatively affected by his stroke throughout his employment." The court emphasized that on summary judgment, evidence must be viewed in the light most favorable to the nonmoving party, and a fact finder could reasonably draw such inferences. (<i>Id.</i>) There are triable issues of act as to whether Manalese competently performed her job duties. See UMFs 18, 20, 23, 44, 45 and AMFs 5, 11. Plaintiff bears no burden to show she was performing her job
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	competently. A plaintiff must demonstrate only “some basic level of competence” at the job. Plaintiff’s showing should be based on objective criteria to the extent possible. (<i>Sandell v. Taylor-Listug, Inc.</i> (2010) 188 Cal.App.4th 297.) The burden of establishing a prima facie case is “not onerous” and exists primarily to weed out patently unmeritorious claims. (<i>Id.</i>) In <i>Cheal v. El Camino Hospital</i>, (2014) 223 Cal.App.4th 736, the court found multiple triable issues precluded summary judgment, including what constituted the relevant standard of competent performance, whether coaching incidents indicated actual performance errors, and whether an alleged menu error fell outside the norm of acceptable performance. The employee presented evidence that given the nature of the work, the hospital expected mistakes, that her mistakes did not exceed acceptable performance standards, and that other employees were not disciplined for making the same types of mistakes. (See also <i>Serri v. Santa Clara University</i> (2014) 226 Cal.App.4th 830.) There are triable issues of fact as to whether Strikeworks terminated Manalese for legitimate business purposes. See UMFs 13, 15, 17, 18, 19, 20, 23. See also Manalese’s Additional Material Facts (“AMF”) 1 through 17. It is undisputed that Manalese was the only employee terminated due to “economic reasons.” An employer’s failure to explain why only the plaintiff was terminated while other employees were retained constitutes substantial evidence of pretext. In <i>Zamora v. Security Industry Specialists, Inc.</i>, (2021) 71 Cal.App.5th 1, the court reversed summary adjudication where the employer claimed economic reasons for termination but “failed to explain why Murillo and Lopez were reassigned while Zamora was terminated.” The court concluded that this incomplete showing, combined with other evidence, <i>raised a triable issue</i> regarding the true reason for discharge. Manalese’s objections to the declaration of Amanda Fisk are overruled. Manalese’s objections to the declaration of Victor Villanueva are overruled. Strikeworks’ objections to the declaration of Kerrie Merrifield is sustained as to 9 and overruled as to the remainder. Strikeworks’ objections to the declaration of Karlina Manalese are overruled.
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7	Matassa vs. Ramirez 2025-01514585	Motion for Preference <i>Continued to 7/23/26. See minute order dated 6/8/26.</i>
8	Mercedes-Benz Vehicle Trust, a Delaware statutory trust, successor by merger to Daimler Trust vs. Williams 2024-01448690	Demurrer to Cross-Complaint Plaintiff/Cross-Defendant Mercedes-Benz Vehicle Trust, successor by merger to Daimler Trust, as serviced by its attorney in fact, Mercedes-Benz Financial Services USA, LLC's ("Cross-Defendant") demurrer to Defendant/Cross-Complainant Cylinder Enterprises, Inc. dba Finish Line Towing & Transport's ("Cross-Complainant") Cross-Complaint is SUSTAINED. (Code Civ. Proc. §430.10, subd. (e).) Cross-Complainant may file a First Amended Cross-Complaint within 20 days of this ruling to address the pleading deficiencies identified below. Cross-Defendant has established compliance with Code Civ. Proc. §430.41. (See Caley Decl. ¶8 [telephonic meet and confer on 4/14/26].) Cross-Defendant's Request for Judicial Notice is GRANTED in PART. (Evid. Code §452, subd. (c).) The Court takes judicial notice of Exhibit "5" of Plaintiff's Verified Complaint. (ROA 2 at pp. 26-27.) Exhibit "5" is a notice of application for lien sale regarding the subject vehicle generated by the California Department of Motor Vehicles on 12/27/23. This document is subject to judicial notice under Evidence Code section 452, subdivision (c) because it is an official act of an executive department of the State of California. Accordingly, the Court takes judicial notice of the fact that the Department of Motor Vehicles sent the notice pursuant to Civil Code section 3071, subdivision (b) on December 27, 2023. The Request for Judicial Notice is DENIED to the extent Moving Party seeks the court to take judicial notice of the truth of any allegations of the Verified Complaint. <u>Meet and Confer</u> Defendant complied with the requirements of Code Civil Procedure section 430.41, subdivision (a)(1). Defendant submits the declaration of Rebecca Caley which provides that the parties engaged in a telephonic meet and confer on 4/14/26 and were unable to resolve the issues raised in the demurrer and motion to strike. (See Caley Decl. ¶8.)

General Standard on Demurrer

In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1404-05.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718 fn.7.)

Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (*Schmid v. City and County of San Francisco* (2021) 60 Cal.App.5th 470, 481; see Code Civ. Proc., § 425.10, subd. (a).)

First Cause of Action: Enforcement of Statutory Lien for Towing and Storage Charges

Cross-Complainant's First Cause of Action alleges that Cross-Defendant failed to timely object to its Application for lien sale pursuant to Civil Code section 3071. Cross-Complainant alleges that Cross-Defendant "procured" a denial of Cross-Complainant's application to conduct the lien sale by submitting its opposition to the application seventy-two days after the deadline had passed. Cross-Complainant reasons that Cross-Defendant should be held liable for "a misuse of the statutory scheme in bad faith."

The allegations of the Cross-Complaint and the judicially noticeable fact that the DMV sent the notice of lien sale pursuant to Civil Code section 3071, subdivision (b) on 12/27/23 show that Cross-Complaint's lien cannot be enforced.

Cross-Complainant's alleged lien arises from towing and storage of the subject vehicle pursuant to a request by the California Highway Patrol to remove the subject vehicle from public property. (See X-Compl. ¶¶ 9, 11.) Accordingly, Cross-Complainant's lien on the subject vehicle was governed by Civil Code section 3068.1. Pursuant to Civil Code section 3068.1, subdivision (c), "the lien shall be satisfied pursuant to Section

	3071. The storage lien may be for a period not exceeding 120 days if an application for an authorization to conduct a lien sale has been filed pursuant to Section 3071.” Cross-Complainant alleges that it filed an application for authorization to conduct a lien sale pursuant to Civil Code section 3071, subdivision (a) on 10/25/23. (See X-Compl. ¶11 and Ex. A.) Cross-Complainant alleged its lien consisted of \$480 for towing, \$440 for storage and a daily rate of \$97.50 for ongoing storage of the subject vehicle. (X-Compl. ¶13.) Pursuant to Civil Code section 3071, subdivision (b), “[u]pon receipt of an application made pursuant to subdivision (a), the department shall do all of the following: (1) Notify the vehicle registry agency of a foreign state of the pending lien sale, if the vehicle bears indicia of registration in that state. (2) By certified mail, send a notice, a copy of the application, and a return envelope preaddressed to the department to the registered and legal owners at their addresses of record with the department, and to any other person whose name and address is listed in the application.” Pursuant to Civil Code section 3071, subd. (c)(3), a recipient of this notice may submit “a Declaration of Opposition form ... to the department within 10 days of the date that the notice required pursuant to subdivision (b) was mailed.” If a declaration of opposition is timely provided to the Department of Motor Vehicles, Civil Code section 3071, subdivision (d) requires that “the department shall notify the lienholder within 16 days of the receipt of the form that a lien sale shall not be conducted unless the lienholder files an action in court within 30 days of the department’s notice under this subdivision. A lien sale of the vehicle shall not be conducted unless judgment is subsequently entered in favor of the lienholder or the declarant subsequently releases his or her interest in the vehicle...” Cross-Complainant alleges that the Department of Motor Vehicles issued a Notice of Declaration of Opposition pursuant to Civil Code section 3071, subdivision (d) on 1/17/24. (See X-Compl. ¶16, Ex. B.) Cross-Complainant alleges that Cross-Defendant did not timely submit a declaration of opposition to the Department of Motor Vehicles. This allegation, however, is nothing more than an unsupported legal conclusion. Cross-Defendant has requested judicial notice be taken of the fact that the “notice required pursuant to subdivision (b)” was sent by the Department on
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12/27/23. Therefore, the service of the declaration of opposition is timely under Civil Code section 3071, subdivision (d).

Since this Cross-Action was filed more than 30 days from the date the Department sent Cross-Complainant notice of the declaration of opposition, the time for Cross-Complainant to file an action in court to enforce the lien (and dispute the declaration of opposition) has long passed. Accordingly, there is no possible relief Cross-Complainant could obtain under Civil Code section 3071 based upon the allegations of the Complaint. The demurrer is sustained with leave to amend.

Second Cause of Action: Account Stated

“The essential elements of an account stated are: (1) previous transactions between the parties establishing the relationship of debtor and creditor; (2) an agreement between the parties, express or implied, on the amount due from the debtor to the creditor; (3) a promise by the debtor, express or implied, to pay the amount due.” (*Leighton v. Forster* (2017) 8 Cal.App.5th 467, 491. [citing *Zinn v. Fred R. Bright Co.* (1969) 217 Cal.App.2d 597, 600].)

The Cross-Complaint fails to allege any of these elements. Furthermore, as Cross-Defendant argues, Cross-Complainant’s exclusive remedy as it pertains to Cross-Defendant is the enforcement of its possessory lien under Civil Code section 3071. (See Veh. Code, § 22851.4.)

Third Cause of Action: Common Counts

Cross-Complainant’s Third Cause of Action is labeled as “common counts”, but pursuant to X-Compl. ¶46, this is a cause of action for open book. The elements of a claim for open book are (1) that the plaintiff and defendant had financial transactions; (2) that the plaintiff kept an account of the debits and credits involved in the transactions; (3) that the defendant owes the plaintiff money on the account, and (4) the amount of money that the defendant owes the plaintiff. (*State Compensation Insurance Fund v. ReadyLink Healthcare, Inc.* (2020) 50 Cal.App.4th 422, 449.)

The Cross-Complaint does not allege that Cross-Complainant and Cross-Defendant had financial transactions and does not allege a debt arising from a history of financial transactions with Cross-Defendant.

Fourth Cause of Action: Quantum Meruit

The elements of a cause of action for quantum meruit are: (1) the plaintiff acted pursuant to an express or implied request for services by the defendant, and (2) the services rendered benefited the defendant. (*Day v. Alta Bates Medical Center* (2002) 98 Cal.App.4th 243, 248.)

The Cross-Complaint fails to allege any express or implied request for services by Cross-Defendant. (See X-Compl. ¶53.)

Fifth Cause of Action: Conversion

A cause of action for conversion requires allegations of “(1) the plaintiff’s ownership or right to possession of the property; (2) the defendant’s conversion by a wrongful act or disposition of property right; and (3) damages.” (*IIG Wireless, Inc. v. Yi* (2018) 22 Cal.App.5th 630, 650.)

Here, Cross-Complainant’s cause of action for conversion is based upon allegations that Cross-Defendant interfered with its rights in the subject vehicle arising from its lien by demanding release of the vehicle without satisfaction of the lien. (See X-Compl. ¶¶60-61.) As discussed above, the allegations in the Cross-Complaint and judicially noticeable facts show that Cross-Complainant’s lien was not valid, so no cause of action for conversion can be maintained based upon any rights Cross-Complainant claims in the subject vehicle by virtue of a lien pursuant to Civil Code section 3068.1.

Sixth Cause of Action: Declaratory Relief

To sufficiently plead a claim for declaratory relief, Plaintiffs must allege “(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party.” (*Lee v. Silveira* (2016) 6 Cal.App.5th 527, 546.)

Moreover, Code of Civil Procedure section 1060 governs actions for declaratory relief. Section 1060 provides that declaratory relief is proper “in cases of actual controversy relating to the legal rights and duties of the respective parties.” However, Code of Civil Procedure section 1061 provides that the court “may refuse to exercise the power granted by this chapter in any case where its declaration or determination is not necessary or proper at the time under all the circumstances.” A determination that declaratory

		relief is not necessary or proper may be made on demurrer. (See <i>Fox Paine & Co. v. Twin City Fire Ins. Co.</i> (2024) 104 Cal.App.5th 1034, review granted 12/11/24 (Case No. S287404) [cited pursuant to Cal Rules of Court, rule 8.1115, subd. (e)].) Here, declaratory relief is not necessary, as the court has found, based upon the allegations of the pleadings and judicially noticeable facts that Cross-Defendant’s declaration of opposition was timely within the framework provided in Civil Code section 3071. <u>Leave to Amend</u> Since the Cross-Complaint was Cross-Complainant’s first attempt to plead a viable cause of action, the Court shall grant Cross-Complainant leave to amend. Motion to Strike Portions of Cross-Complaint In light of the foregoing, the motion to strike is DENIED as MOOT. Cross-Defendant may renew its motion to strike directed against any amended Cross-Complaint that may be subsequently filed. Cross-Defendant shall provide notice.
9	Rupp vs. Rambacher 2024-01400738	Motion for Summary Judgment and/or Adjudication Defendants Thomas E. Rambacher, DPM and Podiatry Hotline Inc.’s Motion for Summary Judgment is DENIED. “A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code Civ. Proc., § 437c, subd. (a)(1).) “A [defendant] has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., §437c, subdivision (p)(2).) Once that burden is met, the burden shifts to Plaintiff “to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Ibid.) “[F]rom commencement to conclusion, the party moving for

	summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (<i>Aguilar</i>, supra, 25 Cal.4th at 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (Id. at 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) <u><i>Statute of Limitations</i></u> Defendants argue that summary judgment is warranted because Plaintiff’s single cause of action for professional negligence is untimely under the one-year statute of limitations set forth in Code Civil Procedure section 340.5. Defendants argue that the one-year period begins to run on the date a reasonable person in Plaintiff’s situation would have suspected that the alleged injury was caused by Defendants’ negligence. (<i>Jolly v. Eli Lilly & Co.</i> (1988) 44 Cal.3d 1103, 1110-1111.) Defendants argue that the undisputed facts show that Plaintiff should reasonably have suspected that Defendants were negligent in treating Plaintiff no later than 10/11/22, because he could not curl his toes at a postoperative checkup where the pins were removed from his foot. (See SSUMF Nos. 35-42.) Where there is a continuing physician-patient relationship following the treatment that is alleged to constitute malpractice, a patient has a “diminished duty to discover” that the physician’s substandard care was a cause of the plaintiff’s injuries while the plaintiff remains under the care of the physician. (See <i>Unijan v. Berman</i> (1989) 298 Cal.App.3d 881, 886-888.) Here, there is a triable issue of fact as to when Plaintiff should reasonably have suspected the cause of his alleged injuries being related to substandard medical treatment. Plaintiff’s own deposition testimony provides several possible dates that Plaintiff could have become aware of a negligent cause of his post-surgical outcome. Thus, summary judgment is not warranted on the issue of timeliness. <u><i>Elements of Medical Malpractice</i></u> “The elements of a cause of action for medical malpractice are: (1)
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	a duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the negligent conduct and the injury; and (4) resulting loss or damage.” (<i>Chakalis v. Elevator Solutions, Inc.</i> (2012) 205 Cal.App.4th 1557, 1571.) In a medical malpractice action, the evidence must be sufficient to allow the jury to infer that in the absence of the defendant's negligence, there was a reasonable medical probability the plaintiff would have obtained a better result. (<i>Alef v. Alta Bates Hospital</i> (1992) 5 Cal.App.4th 208, 216.) A mere possibility the defendant's negligence caused the wrong is insufficient. (<i>Simmons v. West Covina Medical Clinic</i> (1989) 212 Cal.App.3d 696, 702.) “The first element, standard of care, is the key issue in a malpractice action and can only be proved by expert testimony, unless the circumstances are such that the required conduct is within the layperson's common knowledge.” (<i>Lattimore v. Dickey</i> (2015) 239 Cal.App.4th 959, 968, 191 Cal.Rptr.3d 766 (<i>Lattimore</i>).) Proving the third element, causation, also requires “ ‘competent expert testimony.’ ” (<i>Miranda v. Bomel Construction Co., Inc.</i> (2010) 187 Cal.App.4th 1326, 1336, 115 Cal.Rptr.3d 538 (<i>Miranda</i>); accord, <i>Salasguevara v. Wyeth Laboratories, Inc.</i> (1990) 222 Cal.App.3d 379, 385, 271 Cal.Rptr. 780 (<i>Salasguevara</i>) [“medical causation can only be determined by expert medical testimony”].) (<i>San Antonio Regional Hospital v. Superior Court of San Bernardino County</i> (2024) 102 Cal.App.5th 346, 350.) Furthermore, “[a]n expert is qualified to testify where she possesses special skill or experience in her field “ ‘so that [her] testimony [is] likely to assist the jury in the search for the truth.’ ” (<i>Lattimore, supra</i>, 239 Cal.App.4th at p. 969, 191 Cal.Rptr.3d 766.) Expert testimony is properly excluded as speculative where the expert lacks expertise over the subject matter of the litigation. (E.g., <i>Sargon Enterprises, Inc. v. University of Southern California</i> (2012) 55 Cal.4th 747, 759, 149 Cal.Rptr.3d 614, 288 P.3d 1237.)” (<i>San Antonio Regional Hospital v. Superior Court of San Bernardino County</i>, 102 Cal.App.5th at 351–352.) When a defendant moves for summary judgment and supports its motion with expert declarations that his conduct fell within the community standard of care, the defendant is entitled to summary judgment unless the plaintiff comes forward with conflicting expert evidence. (<i>Munro v. Regents of the University of Calif.</i>
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(1989) 215 Cal.App.3d 977, 985.) In assessing whether the plaintiff's evidence creates a triable issue of fact, the plaintiff's counter-expert declarations are to be liberally construed, and any doubts resolved in favor of the plaintiff. (*Powell v. Kleinman* (2007) 151 Cal.App.4th 112, 126, 128-129.)

Here, Defendant supports its motion by submitting the declaration of Gennady Kolodenker, DPM. Dr. Kolodenker is board certified in Podiatric Medicine. Dr. Kolodenker opines that Defendants' care of Plaintiff was within the standard of care, based upon his review of the Complaint, Plaintiff's medical records, Plaintiff's deposition, Plaintiff's discovery responses, and the deposition of Rambacher. Dr. Kolodenker reasons that the treatment was within the standard of care because Plaintiff had a complex injury that did not respond to conservative treatment, Dr. Rambacher correctly diagnosed the malady, and Dr. Rambacher recommended the appropriate surgical intervention. Furthermore, Dr. Kolodenker opines that Dr. Rambacher appropriately performed the surgery and that any complications suffered were known complications from the procedure Plaintiff underwent.

In response, Plaintiff offers the declaration of Brandon A. Haghverdian, MD. Dr. Haghverdian is a licensed medical doctor who practices orthopedic foot and ankle surgery. Dr. Haghverdian has experience treating patients who have had complications from failed foot and ankle surgeries. Dr. Haghverdian bases his opinions upon his review of Plaintiff's medical records, imaging, operative reports, post operative treatment records, and his own treatment of Plaintiff. Dr. Haghverdian has also assessed the declaration of Dr. Kolodenker. Dr. Haghverdian offers his opinions to a reasonable degree of medical probability and bases his opinions upon his education, experience, training, medical records, medical imaging, and his direct evaluation and treatment of Plaintiff. Dr. Haghverdian opines that Dr. Rambacher's surgical planning and decision making were not supported by the clinical findings. Dr. Haghverdian opines that the combination of findings present in this case indicate that the failure of the initial surgery was the result of Dr. Rambacher's professional negligence. Dr. Haghverdian opines that the failures from the surgery are the cause of Plaintiff's post-operative injuries and complications.

Defendants' Objections to the declaration of Dr. Haghverdian are OVERRULED. The declaration provides sufficient foundation for Dr. Haghverdian's opinions. Dr. Haghverdian is appropriately qualified to offer his opinions. Dr. Haghverdian bases his opinions on Plaintiff's medical records, imaging, and Dr. Haghverdian's

		own treatment of Plaintiff. Dr. Haghverdian provides a reasoned basis for his standard of care and causation opinions and disputes the findings of Dr. Kolodenker. Thus, there is a triable issue of material fact as to the elements of breach of duty and causation such that the motion must be DENIED. Plaintiff shall provide notice.
10	Casate vs. Allview Real Estate 2026-01542936	Motion to Strike Complaint <i>Continued to 6/25/26. See minute order dated 6/1/26.</i>
11	Hoag Memorial Hospital Presbyterian vs. Monarch Health Plan, Inc. 2026-01546114	Demurrer to Amended Complaint <i>Continued to 7/23/26. See minute order dated 6/1/26.</i>
12	Woo vs. General Motors, LLC 2025-01518945	Motion for Attorney Fees <i>Continued to 7/23/26. See minute order dated 6/8/26.</i>
13	Rayas vs. Padilla 2023-01367764	Motion to Disqualify Attorney of Record Plaintiff Fernando J. Rayas’ motion to disqualify Callahan & Blaine, PC from representing Canchola-Padilla Limited Partnership [“Partnership”] is DENIED. (Code Civ. Proc., §§ 128, subd. (a)(5), 284, subd. (2) [court’s authority]; <i>Responsible Citizens v. Superior Court</i> (1993) 16 Cal.App.4th 1717, 1723-1724 [court’s authority to disqualify counsel “on a showing that disqualification is required under professional standards governing avoidance of conflicts of interest or potential adverse use of confidential information”]; <i>Jarvis v. Jarvis</i> (2019) 33 Cal.App.5th 113, 128 [disqualifying partnership counsel based on lack of authority of equal partner to appoint same].) Moving party has not shown the existence of a conflict requiring disqualification of Partnership counsel. The fact that Padilla and the Partnership both contend the Partnership is dissolved, does not mean that Partnership counsel cannot represent the Partnership’s best interests, and moving party cites no authority that it does. (<i>Dickson, Carlson & Campillo v. Pole</i> (2000) 83 Cal.App.4th 436, 445 [“A partnership does not terminate upon dissolution but continues until the winding up of partnership affairs is

	completed”]; see also Corp. Code, § 15908.03, subd. (a) [“A limited partnership continues after dissolution only for the purpose of winding up its activities”]; <i>Cotten v. Perishable Air Conditioners</i> (1941) 18 Cal.2d 575, 577 [“In general a dissolution operates only with respect to future transactions; as to everything past the partnership continues until all pre-existing matters are terminated”].) Thus, regardless of whether the Partnership is dissolved, defense counsel may still properly defend partnership interests. Further, assuming Padilla remains a general partner as moving party contends, it is not necessarily a conflict for Padilla to assert the partnership is dissolved, nor defeat Padilla’s authority to appoint Partnership counsel. (<i>Dickson, Carlson & Campillo v. Pole, supra</i> at 445 [“The partners of a dissolved partnership owe each other a fiduciary duty to complete the partnership’s unfinished business ... includ[ing] an obligation to act in the highest good faith and not to obtain any advantage over the other partners in partnership affairs;” internal citations omitted]; see also Corp. Code, § 16803, subd. (c) [“A person winding up a partnership’s business may preserve the partnership business or property as a going concern for a reasonable time, <u>prosecute and defend actions and proceedings</u>, whether civil, criminal, or administrative, settle and close the partnership’s business, dispose of and transfer the partnership’s property, discharge the partnership’s liabilities, distribute the assets of the partnership ... settle disputes by mediation or arbitration, and perform other necessary acts;” emphasis added].) As the motion is denied, moving plaintiff’s associated requests to prohibit defendants from appointing new counsel, and/or to strike the Partnership’s Answer, are likewise DENIED. Defendant Partnership shall give notice.
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